Gunjan Thakur vs State (Nct Of Delhi) on 30 May, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1946/2024
   GUNJAN THAKUR ..... Applicant
   Through: Mr. Sandeep Sharma, M
   Amit Chaudhary, Mr.
   Aman Dhyani, Mr. Hunn
   Veer Singh, Mr. Sarth
   Manan, Ms. Kavya Dauk
   Mr. Hemant Mr. Ajay
   Solanki, Mr. Mayank
   Verma & Mr. Amit
   Solanki, Advs.

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STATE (NCT OF DELHI)
Through:

CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN
ORDER

% 30.05.2024 CRL.M.A. 17269/2024 (for exemption)

1. Exemptions allowed, subject to all just exceptions.

2. The application stands disposed of.

3. The present application is filed under Section 438 of the Code of Criminal Procedure, 1973 ('CrPC') seeking pre-arrest bail in FIR No. 111/2024 dated 02.04.2024 registered at Police Station Special Cell, Delhi for offences punishable under Sections 419/420/120B/34 of the Indian Penal Code, 1860 and Sections 66C/66D of the Information Technology Act, 2000.

4. The FIR was registered alleging that the applicant along This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/06/2024 at 02:04:31 with other co-accused persons is operating an illegal call centre from where they conduct large-scale cyber fraud targeting US citizens by impersonating as representatives of a company, namely, Charles Schwab Financial Services.

5. The learned counsel for the applicant submits that the applicant has been unnecessarily implicated in the present case. He submits that the allegations against the applicant is that the call centre was operating from premises which was taken on rent by the applicant. He submits that it is an admitted case that the brother of the applicant along with other co-accused persons were caught at the time of raid while allegedly running the illegal call centre.

6. He submits that the applicant, at the said time, was not in India. He further submits that all the co-accused persons who were arrested have already been admitted on bail by the orders passed by the learned Trial Court. He further submits that it was a categorical stand of the prosecution that, even though the co- accused Ramneek Singh, Yatin Khanna and the applicant were the main operators, but were running the call centre on the directions of co-accused, Sanchit Kapoor and Kunal Chhabra. Thus, even as per the allegations and as per the prosecution, the beneficiaries of the entire fraud are Sanchit Kapoor and Kunal Chhabra.

7. He submits that the co-accused Ramneek Singh and Yatin Khanna have already been admitted on bail. He submits that the applicant is ready to participate and cooperate with the investigation. He is a young man of 30 years of age and has no antecedents.

8. Issue notice.

9. The learned Additional Public Prosecutor for the State This is a digitally signed order.

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10. Let Status Report be filed before the next date of hearing.

11. The respondent is directed not to arrest the applicant till the next date of hearing, subject to the applicant joining and cooperating with the investigation as and when directed by the Investigating Officer.

12. List on 08.08.2024.

AMIT MAHAJAN, J MAY 30, 2024 "SS"

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